

ATTORNEY OR PARTY WITHOUT ATTORNEY STATE BAR NUMBER: 129081 NAME: JOHN A. SHEPARDSON, ESQ. FIRM NAME: Law Office of JOHN A. SHEPARDSON STREET ADDRESS: 125 E. Sunnyside Avenue, Suite 104 CITY: Campbell STATE: CA ZIP CODE: 95008 TELEPHONE NO.: 408-395-3701 FAX NO.: 408-395-0112 E-MAIL ADDRESS: john@shepardsonlaw.com ATTORNEY FOR (name): Plaintiff BRENT VENTURA	FOR COURT USE ONLY Electronically Filed by Superior Court of CA, County of Santa Clara, on 7/17/2024 8:28 PM Reviewed By: A. Floresca Case #24CV430559 Envelope: 15982979
SUPERIOR COURT OF CALIFORNIA, COUNTY OF SANTA CLARA STREET ADDRESS: 191 NORTH FIRST STREET MAILING ADDRESS: 191 NORTH FIRST STREET CITY AND ZIP CODE: SAN JOSE, CALIFORNIA 95113 BRANCH NAME: CIVIL UNLIMITED	
PLAINTIFF/PETITIONER: BRENT VENTURA DEFENDANT/RESPONDENT: EDWARD FIELDS, Individually, and as TRUSTEE, et al.	
REQUEST FOR DISMISSAL	
CASE NUMBER: 24CV430559	
A conformed copy will not be returned by the clerk unless a method of return is provided with the document.	
This form may not be used for dismissal of a derivative action or a class action or of any party or cause of action in a class action. (Cal. Rules of Court, rules 3.760 and 3.770.)	

1. TO THE CLERK: Please **dismiss** this action as follows:

- a. (1) ☒ With prejudice (2) ☐ Without prejudice
- b. (1) ☐ Complaint (2) ☐ Petition
- (3) ☐ Cross-complaint filed by (name):
- (4) ☐ Cross-complaint filed by (name):
- (5) ☒ Entire action of all parties and all causes of action
- (6) ☐ Other (specify):*

on (date):

on (date):

2. (Complete in all cases except family law cases.)

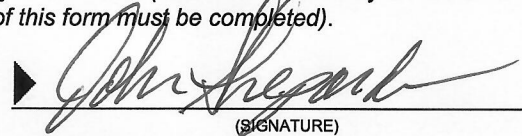
The court ☐ did ☒ did not waive court fees and costs for a party in this case. (This information may be obtained from the clerk. If court fees and costs were waived, the declaration on the back of this form must be completed).

Date: July 15, 2024

JOHN A. SHEPARDSON

(TYPE OR PRINT NAME OF ☒ ATTORNEY ☐ PARTY WITHOUT ATTORNEY)

*If dismissal requested is of specified parties only of specified causes of action only, or of specified cross-complaints only, so state and identify the parties, causes of action, or cross-complaints to be dismissed


(SIGNATURE)

Attorney or party without attorney for:

- ☒ Plaintiff/Petitioner ☐ Defendant/Respondent
- ☐ Cross-Complainant

3. TO THE CLERK: Consent to the above dismissal is hereby given.**

Date: _____

(TYPE OR PRINT NAME OF ☐ ATTORNEY ☐ PARTY WITHOUT ATTORNEY)

** If a cross-complaint - or Response (Family Law) seeking affirmative relief - is on file, the attorney for cross-complainant (respondent) must sign this consent if required by Code of Civil Procedure section 581 (i) or (j).


(SIGNATURE)

Attorney or party without attorney for:

☐ Plaintiff/Petitioner ☐ Defendant/Respondent

☐ Cross-Complainant

4. ☒ Dismissal entered as requested on (date): 7/17/2024 8:28 PM

5. ☐ Dismissal entered on (date): as to only (name):

6. ☐ Dismissal **not entered** as requested for the following reasons (specify):

7. a. ☒ Attorney or party without attorney notified on (date): 7/17/2024 8:28 PM

- b. ☐ Attorney or party without attorney not notified. Filing party failed to provide
- ☐ a copy to be conformed ☐ means to return conformed copy

Date: 7/17/2024 8:28 PM

Clerk, by _____, Deputy
A. Floresca

PLAINTIFF/PETITIONER: BRENT VENTURA
 DEFENDANT/RESPONDENT: EDWARD FIELDS, Individually, and as TRUSTEE, et al.

CASE NUMBER:
 24CV430559

COURT'S RECOVERY OF WAIVED COURT FEES AND COSTS

If a party whose court fees and costs were initially waived has recovered or will recover \$10,000 or more in value by way of settlement, compromise, arbitration award, mediation settlement, or other means, the court has a statutory lien on that recovery. The court may refuse to dismiss the case until the lien is satisfied. (Gov. Code, § 68637.)

Declaration Concerning Waived Court Fees

1. The court waived court fees and costs in this action for *(name)*:
2. The person named in item 1 is *(check one below)*:
 - a. ☐ not recovering anything of value by this action.
 - b. ☐ recovering less than \$10,000 in value by this action.
 - c. ☐ recovering \$10,000 or more in value by this action. *(If item 2c is checked, item 3 must be completed.)*
3. All court fees and court costs that were waived in this action have been paid to the court *(check one)*: ☐ Yes ☐ No

I declare under penalty of perjury under the laws of the State of California that the information above is true and correct.

Date: _____

 (TYPE OR PRINT NAME OF ☐ ATTORNEY ☐ PARTY MAKING DECLARATION)



 (SIGNATURE)